

Participation Agreement
IBM Egypt

Agreement # 4998CM0379
PA# CW3647586

EFFECTIVE DATE OF THIS PARTICIPATION AGREEMENT ("PA"): 10.07.2023

This PA between IBM World Trade Corp - Egypt Branch ("Buyer") and George P Johnson FZ LLC ("Supplier") adopts and incorporates by reference all of the terms and conditions of the Base Agreement #4998CM0379 in effect as of the date hereof ("Base Agreement"). This PA automatically incorporates any future amendments to the Base Agreement referenced in this, and will be made a part of this PA to the extent that the amendments do not conflict with the terms of this PA unless otherwise agreed to in writing by the parties to this PA.

The parties to this PA agree that purchases and sales of the Deliverables, Products or Services, as defined in the Base Agreement, will be conducted in accordance with, and be subject to, the terms and conditions of this PA, the Base Agreement and any applicable Work Authorizations.

AMENDMENTS: The following terms and conditions amend provisions of the Base Agreement to bring the conduct of the parties' transactions into conformity with local law and practice.

1.0 Prior Communications and Order of Precedence

In the event of any conflict in the terms of the Base Agreement, the order of precedence will be: (i) the quantity, payment and delivery terms of the relevant WA; (ii) the relevant SOW; (iii) this PA; (iv) the Base Agreement; and (v) the remaining terms of the relevant WA.

2.0 Choice of Law and Forum; Waiver of Jury Trial; Limitation of Action

The following replaces the Subsection titled "*Choice of Law and Forum; Waiver of Jury Trial; Limitation of Action*" of the referenced Base Agreement: This Agreement and the performance of transactions under this Agreement will be governed by the laws of Egypt.

The application of the above referenced laws is without regard to applicable conflict of laws principles. The United Nations Convention on Contracts for the International Sale of Goods does not apply. The parties expressly waive any right to a jury trial regarding disputes related to this Agreement. Unless otherwise provided by applicable law without the possibility of contractual waiver or limitation, any legal or other action related to a breach of this Agreement must be commenced no later than two (2) years from the date on which the cause of action arose.

3.0 Ongoing Warranties

The following sentence is added to this section: It is the Supplier's obligation to ensure to comply with any laws/regulations applicable in the country the end-user/customer is located.

4.0 Supplier and Supplier Personnel

The following sentence is added to this section: Supplier will comply with the provisions of the applicable laws on Employment of Foreigners and Buyer has the right to request evidence with regard to that compliance.

5.0 Survival

In the event the Base Agreement is terminated, the terms and conditions of the Base Agreement incorporated by reference herein shall survive such termination and remain in effect for purposes of this PA only.

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6.0 Contracting Social Insurance

Vendor agrees that social insurance contributions applicable to this AGREEMENT as stipulated in the Arab Republic of Egypt Social Insurance Law, Ministerial Orders and subsequent instructions and regulations, are the Vendor's own liability and should be done through full alignment with IBM.

No payment will be made to Vendor unless it submits a Social Insurance Certificate covering the actual amount mentioned in each invoice presented to COMPANY. Payment of the final invoice(s) will be postponed until receiving the final Social Insurance Certificate.

7.0 Payments

In case of foreign currency invoice(s) received by IBM Egypt, from Supplier's local legal entity in Egypt, invoice payment will be in local currency (EGP), payable amount would be calculated by IBM using rates provided by the International Exchange companies (such as Bloomberg rates) on the due date of the invoice taking approximately four (4) calendar days ("Selection Date") before cheque issuance date ("Issuance Date"). IBM shall not be held liable for any devaluation of the currency which may occur to the EGP between the Selection Date and the cheque Issuance Date.

ACCEPTED AND AGREED TO:		ACCEPTED AND AGREED TO:	
By: IBM World Trade Corp - Egypt Branch		By: George P Johnson FZ LLC	
Buyer Signature	Date	Supplier Signature	Date
Printed Name:		Printed Name:	
Title and Organisation:		Title and Organisation:	
Buyer Address: IBM World Trade Corporation, Pyramids Heights Office Park - C10, Alexandria Desert Road, El-Ahram Giza, Cairo, C 9999, , EG,		Supplier Address: Office 217 Loft Offices Building 2, Dubai, , 0000, United Arab Emirates	